ATTORNEYS
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August 3, 2023

PERSONAL AND CONFIDENTIAL

Cydia Alves Pereira de Souza
***SENT VIA* cysouza@gmail.com**

Re: Your Potential Product Liability Claim

Dear Cydia:

The attorneys at **mctlaw** |Maglio Christopher & Toale Law Firm, Nash & Franciskato Law Firm, Cohen and Malad, LLP and Silveira, Ferraz & Renan Lopes Sociedade De Avogados look forward to representing you and investigating your potential Exactech case. Our strategy is to pursue compensation for your injuries from the company that made the implant, and possibly others involved in designing, marketing, and distributing the implant. However, we *will not* pursue claims against your doctor.

It's very important that you review the information on the following pages and sign the attached documents as soon as possible. Without them, we cannot begin to work on your case. Below is a step-by-step outline of the process and explanations of how each phase of this litigation will work.

Things You Should Know About Your Potential Lawsuit:

1. **This is a Long Process**: Please understand that your case may move slowly. Cases like this can take many years. Sometimes you may hear from us several times in a day. Other times, it may be many months between communications. This is normal in any complex lawsuit. When new or important information is learned about your case, we will provide you with an update. If you're ever in doubt, however, feel free to reach out to us.

2. **This is a Complex Case and Victory is Not Guaranteed**: First, our current understanding of your potential case is incomplete. As we learn more about your circumstances and your medical history, we will gain a stronger understanding of the types of claims we can pursue for you as well as the defenses that the other side may use in your case. We will work diligently on your behalf so that we have the best chance of success for you. However, it is important that you understand there is no guarantee of settlement or victory at trial. These are highly complex cases.

   As one example, defendants generally try to get your case dismissed by arguing that the time allowed by law for you to bring these claims has run. They use (or misuse) facts in your medical history or elsewhere to support their position. We will obviously fight such efforts, but the ultimate resolution of these issues is up to the Court and therefore not in our

control. We expect this attack to occur in your case. As we learn more about your case, we will try to take whatever strategies we can to maximize our chances of overcoming such attacks.

3. **Social Media and Other Evidence in Your Possession**: You must take care to not destroy or discard evidence in your possession which relates to your case. What types of things could this evidence be? Photos, videos, voicemails, text messages, calendars, journals, diaries, letters, e-mails, etc. This also includes social media posts. How do you know what relates to your case? In general, if it directly discusses your implants, the underlying conditions for the implants, your injuries, etc., it's related. However, it's also related to your litigation if it involves your physical abilities and limitations. For example, if you believe your injuries caused you pain and limited your physical abilities, documents and things related to your movement are related, such as photos or discussions relating to you walking, gardening, traveling, exercising, etc. Such documents or things go to prove or disprove your claims. **It is important that you do not damage, destroy, or discard anything which may relate to your case. Do not delete or deactivate any online accounts or profiles. Courts view this as an effort to hide or destroy evidence that may hurt your case and may issue sanctions including fines and dismissal.**

4. **Loss of Consortium Claim**: Certain family members, including your spouse, may have a claim for "loss of consortium." This is a secondary claim to your lawsuit brought by your spouse or other family member(s) for the loss of your services and companionship. We only represent you and do not represent any of your family members. We do not intend to bring a loss of consortium claim on behalf of any of your family members.

5. **Example of a Settlement Scenario**: If a settlement offer is made in your case, we will explain the offer to you and help you make an informed decision whether to accept or continue toward a trial. We will explain how much goes to pay our fees (for our services) and costs (the money spent on your case) as outlined in the *Authority to Represent and Fee Agreement*. The law may also require that you reimburse your health insurance provider, from your settlement proceeds, for any bills it paid relating to medical treatment to remove your implant. To help you visualize, here's an example using a $100.00 settlement scenario:

SETTLEMENT OFFER OF $100	
ITEMS	**COSTS**
Attorney Fees *(Assuming 40%)*	-$40.00
Case Costs	-$5.00
Medical Bills/Reimbursement to Insurer	-$10.00
Net Settlement in Your Pocket	**$45.00**

NASH & FRANCISKATO
LAW FIRM

What to Do Next: Review and Sign Documents

⇒ *Authority to Represent and Fee Agreement* - If you understand and agree to the terms of the enclosed Statement of Client's Rights and Fee Agreement, please sign as soon as possible. We cannot start representing you in your case until this document is signed by both you and an attorney of this Firm. If you have any questions or concerns about the *Authority to Represent and Fee Agreement*, please call or e-mail us to discuss them.

We look forward to representing you in this matter.

Sincerely,

Brian Franciskato, Esq.
On Behalf of Firms

NASH & FRANCISKATO
LAW FIRM

FLORIDA SUPREME COURT STATEMENT OF CLIENT'S RIGHTS FOR CONTINGENCY FEES

Before you, the prospective client, arrange a contingent fee agreement with a lawyer, you should understand this statement of your rights as a client. This statement is not a part of the actual contract between you and your lawyer, but, as a prospective client, you should be aware of these rights:

1. There is no legal requirement that a lawyer charge a client a set fee or a percentage of money recovered in a case. You, the client, have the right to talk with your lawyer about the proposed fee and to bargain about the rate or percentage as in any other contract. If you do not reach an agreement with one lawyer, you may talk with other lawyers.

2. Any contingent fee contract must be in writing and you have three (3) business days to reconsider the contract. You may cancel the contract without any reason if you notify your lawyer in writing within three (3) business days of signing the contract. If you withdraw from the contract within the first three (3) business days, you do not owe the lawyer a fee although you may be responsible for the lawyer's actual costs during that time. If your lawyer begins to represent you, your lawyer may not withdraw from the case without giving you notice, delivering necessary papers to you, and allowing you time to employ another lawyer. Often, your lawyer must obtain court approval before withdrawing from a case. If you discharge your lawyer without good cause after the three-day period, you may have to pay a fee for work the lawyer has done.

3. Before hiring a lawyer, you, the client, have the right to know about the lawyer's education, training, and experience. If you ask, the lawyer should tell you specifically about his or her actual experience dealing with cases similar to yours. If you ask, the lawyer should provide information about special training or knowledge and give you this information in writing if you request it.

4. Before signing a contingent fee contract with you, a lawyer must advise you whether he or she intends to handle your case alone or whether other lawyers will be helping with the case. If your lawyer intends to refer the case to other lawyers, he or she should tell you what kind of fee sharing arrangement will be made with the other lawyers. If lawyers from different law firms will represent you, at least one lawyer from each law firm must sign the contingent fee contract.

5. If your lawyer intends to refer your case to another lawyer or counsel with other lawyers, your lawyer should tell you about that at the beginning. If your lawyer takes the case and later decides to refer it to another lawyer or to associate with other lawyers, you should sign a new contract which includes the new lawyers. You, the client, also have the right to consult with each lawyer working on your case and each lawyer is legally responsible to represent your interests and is legally responsible for the acts of the other lawyers involved in the case.

6. You, the client, have the right to know in advance how you will need to pay the expenses and the legal fees at the end of the case. If you pay a deposit in advance for costs, you may ask reasonable questions about how the money will be or has been spent and how much of it remains unspent. Your lawyer should give a reasonable estimate about future necessary costs. If your lawyer agrees to lend or advance you money to prepare or research the case, you have the right to know periodically how much money your lawyer has spent on your behalf. You also have the right to decide, after consulting with your lawyer, how much money is to be spent to prepare a case. If you pay the expenses, you have the right to decide how much to spend. Your lawyer should also inform you whether the fee will be based on the gross amount recovered or on the amount recovered minus the costs.

7. You, the client, have the right to be told by your lawyer about possible adverse consequences if you lose the case. Those adverse consequences might include money which you might have to pay to your lawyer for costs and liability you might have for attorney's fees to the other side.

8. You, the client, have the right to receive and approve a closing statement at the end of the case before you pay any money. The statement must list all of the financial details of the entire case, including the amount recovered, all expenses, and a precise statement of your lawyer's fee. Until you approve the closing statement, you need not pay any money to anyone, including your lawyer. You also have the right to have every lawyer or law firm working on your case sign this closing statement.

9. You, the client, have the right to ask your lawyer at reasonable intervals how the case is progressing and to have these questions answered to the best of your lawyer's ability.

10. You, the client, have the right to make the final decision regarding settlement of a case. Your lawyer must notify you of all offers of settlement before and after the trial. Offers during the trial must be immediately communicated and you should consult with your lawyer regarding whether to accept a settlement. However, you must make the final decision to accept or reject a settlement.

11. If at any time, you, the client, believe that your lawyer has charged an excessive or illegal fee, you, the client, have the right to report the matter to The Florida Bar, the agency that oversees the practice and behavior of all lawyers in Florida. For information on how to reach The Florida Bar, call (850) 561-5600 or contact the local bar association. Any disagreement between you and your lawyer about a fee can be taken to court and you may wish to hire another lawyer to help you resolve this disagreement. Usually fee disputes must be handled in a separate lawsuit, unless your fee contract provides for arbitration. You can request that a provision for arbitration (under Chapter 682, Florida Statutes or under the Fee Arbitration Rule of The Florida Bar) be included in your fee contract.

NASH & FRANCISKATO
LAW FIRM

CLIENT SIGNATURE

SIGNATURE: Cydia A P de Souza DATE: 11/08/2023

NAME: Cydia Alves Pereira de Souza

ATTORNEY SIGNATURES

On behalf of ***Nash & Franciskato Law Firm***

SIGNATURE: _____ DATE: _____

NAME: Brian Franciskato

On behalf of ***mctlaw***

SIGNATURE: _____ DATE: _____

NAME: Ilyas Sayeg

On behalf of ***Cohen & Malad, LLP***

SIGNATURE: _____ DATE: _____

NAME: Ned Mulligan

On behalf of **SILVEIRA, FERRAZ & RENAN LOPES SOCIEDADE DE ADVOGADOS**

SIGNATURE: _____ DATE: _____

NAME: Victor Correa

NASH & FRANCISKATO
LAW FIRM

AUTHORITY TO REPRESENT AND FEE AGREEMENT

1. **Parties**: **Cydia Alves Pereira de Souza** ("Client"), retains and employs **mctlaw, Nash & Franciskato Law Firm, and Cohen & Malad, LLC, sfera** (collectively referred to as "Attorneys" or "Firms"), to represent Client in connection with the claims which Client may have against Exactech, Inc. and possibly others including subsidiary companies, parent companies and the designers and/or distributors, arising out of injuries suffered by Client regarding the failure of knee replacement. It is agreed and understood that Firms will not pursue any claims against Plaintiff's health care providers.

2. **Contingency Fee Schedule**: As compensation for their services, Client agrees to pay Attorneys from the proceeds of recovery the following fee:

   a. Before the filing of an answer or the demand for appointment of arbitrators and before the expiration of the time period provided for such action:
      i. 33 1/3% of any recovery up to $1 million; plus
      ii. 30% of any portion of the recovery between $1 million and $2 million; plus
      iii. 20% of any portion of the recovery exceeding $2 million; or

   b. After the filing of an answer or the demand for appointment of arbitrators or, if no answer is filed or no demand for appointment of arbitrators is made, the expiration of the time period provided for such action, through the entry of judgment:
      i. 40% of any recovery up to $1 million; plus
      ii. 30% of any portion of the recovery between $1 million and $2 million; plus
      iii. 20% of any portion of the recovery exceeding $2 million; or

   c. If all defendants admit liability at the time of filing their answers and request a trial only on damages:
      i. 33 1/3% of any recovery up to $1 million; plus
      ii. 20% of any portion of the recovery between $1 million and $2 million; plus
      iii. 15% of any portion of the recovery exceeding $2 million, and

   d. An additional 5% of any recovery after notice of appeal is filed or post-judgment relief or action is required for recovery on the judgment.

IT IS AGREED and UNDERSTOOD that this employment is upon a contingent fee basis, and if no recovery is made, Client will not be indebted to Attorneys for any sum whatsoever as attorneys' fees.

3. **Division of Contingency Fee:** Attorneys shall split their fee equally and be equally responsible for the representations of Client, including advancement of case costs, and shall actively participate in the prosecution of this case.

4. **Payment of Costs Advanced:** Client HEREBY AGREES to pay for the costs incurred by the Firms in prosecuting this claim and authorizes them to undertake and/or incur such costs as they may deem necessary from time to time. These costs include, but are not limited to, such items as hospital and medical records, photographs, filing fees, costs of serving summonses and subpoenas, court reporters fees, jury list, exhibits, state records, investigation expenses, expert witness fees, including fees for medical testimony and fees for medical conferences. They will make every effort to keep these costs at as low as practicable consistent with the requirements of the case. At the time the case is closed, an accounting will be made for all disbursements made in my case. Client shall **not** be held responsible for reimbursing Firms for the expenses of the case if there is no recovery.

5. **Medical Authorizations:** Client grants Firms authority to use Client's HIPAA and HITECH authorizations for the duration of the Firms' representation of Client to obtain the records and materials necessary for Client's injury case and to date the authorizations with the current date and to enter the names and addresses of Client's various medical and other providers onto the authorizations.

6. **Multiple Settlements:** Where Client is pursuing more than one defendant, and where Client settles with one defendant, Client agrees to allow Firm to retain sufficient money from the settlement to cover future costs in pursuing the claim against any other defendants.

7. **Firms' Representation of Multiple Similar Plaintiffs:** Client understands that Firms represent many individuals similarly injured by the same product at issue in the representation of Client. Although the interests of Client and these other individuals similarly injured by the same product are generally consistent, Client recognizes and understands that differences may exist or become evident during the course of Firms' representation. Notwithstanding these possibilities, Client agrees that it is in Client's individual interest to employ Firms to pursue Clients' rights and does not object to Firms' representation of other similarly injured plaintiffs.

8. **Coordination With Other Lawsuits:** Client understands and agrees that Client's case may be consolidated or coordinated with other similar cases for pretrial, trial, and/or settlement purposes. This is at the discretion of Firms if they believe it is in the best interest of Client's case. If Client chooses to resolve the case as part of a settlement program in which other plaintiffs also resolve their cases, Client understands and agrees that Client's case may be subject to certain court-ordered cost assessments. In any coordinated settlement program, Client will always retain the right to reject or accept any potential settlement.

9. **Firms' Representation of Plaintiff in the State of Florida**: Client understands that Attorneys will assert claims on client's behalf in the State of Florida and will not make any claims in Brazil. It is possible Exactech may assert defenses that preclude recovery in the United States. Client should consult with an attorney in Brazil to determine if any legal steps need to be taken in Brazil to protect Client's claims. Additionally, there could be various notice requirements and/or time restrictions applicable based on Brazilian law. Attorneys do not offer any advice reading the application of Brazilian law to Client's claims. In that regard, Client should discuss his/her claims with an attorney licensed to practice law in Brazil. Client waives any claims against attorneys that could arise out of the application or adoption of Brazilian law or any other foreign law or defense.

10. **Appeals**: It is agreed that the Firms are not obligated to appeal or in any way to represent Client on an appeal of this case. Client also is not obligated to appeal this case.

11. **Termination of Attorney/Client Relationship**

    a. **Attorney Withdrawal From Representation**: Firms may withdraw for any of the following reasons: if the Client fails to cooperate with the Firms; if the Client fails to communicate and maintain communication with the Firms; for reasons of conflict of interest; for ethical reasons; if justice so requires; for Client dismissal of the Firms; and, for irreconcilable differences with Client that arise with respect to how the case should be prosecuted. In addition, the Firms may withdraw from the case if investigation discloses no insurance coverage on the part of parties liable to the Client or if, in the Firms' opinion, the case cannot be economically pursued. The decision to withdraw for any of these reasons, with the exception of Client dismissal, is at the sole option of the Firms.

    b. **Dismissal of Firms by Client**: Client is entitled to dismiss Firms for any reason, at any time.

    c. **Payment of Fees and/or Costs After Termination**: If Client receives any recovery related to the claims in Paragraph 1 following Termination of the Attorney/Client Relationship, Client is liable to Firms for the payment of Fees and/or Costs in accordance with the following:

        i. **Costs**: Client is responsible to pay all case costs advanced by Firms during their representation of Client.

        ii. **Fees:** Client is responsible to pay Firms the reasonable value of Firms' services during the time Client was represented by Firms. If a settlement offer was secured prior to termination, Client agrees that reasonable value of Firms' services under this Subparagraph is governed by the application of Paragraph 2 to the value of the highest settlement offer secured for Client by Firms prior to termination.

12. **Lien on Case**: Firms have a lien on the case in the event of Firms' dismissal by Client. The amount of the lien is consistent with Paragraph 9, above. Client hereby grants Firms a lien for any costs and/or fees claimed or due under this Paragraph. These remedies shall be in addition to other remedies the Firms may have.

13. **Deposit of Settlement Funds**: All funds received from third parties will initially be deposited in a Firm's trust account and disbursed to the Client *after the check or insurance draft has been cleared.*

14. **Payments from Proceeds**: It is agreed that any proceeds of any recovery whether by settlement, judgment, levy and execution, or otherwise, are to be satisfied in the following order:

    FIRST: The Firms' attorneys' fees to which the Firms are entitled;

    SECOND: All costs and expenses of litigation; and

    THIRD: Client (including financial obligations Client may have by way of insurer subrogation claims, medical liens, bankruptcy, etc.

15. **Dispute Resolution**: If legal action is necessary as a result of a breach of this agreement or to collect any monies or portions of settlements or judgments owed under this agreement, the Client and Firm agree that the prevailing party is entitled to attorney's fees and costs and that the Courts of Florida have sole jurisdiction to hear any dispute between the Parties as to any rights and/or responsibilities created in this Agreement.

16. **Severability Clause**: If any of the provisions of this document are deemed illegal, unlawful, or invalid, they are hereby severed from this agreement and the remainder of this agreement remains in full force and effect.

17. **Entire Agreement in This Document**: This document contains the entire agreement of the parties and there are not separate oral agreements.

THE UNDERSIGNED CLIENT HAS, BEFORE SIGNING THIS CONTRACT, RECEIVED AND READ THE STATEMENT OF CLIENT'S RIGHTS, AND UNDERSTANDS EACH OF THE RIGHTS SET FORTH THEREIN. THE UNDERSIGNED CLIENT HAS SIGNED THE STATEMENT AND RECEIVED A SIGNED COPY TO KEEP AND REFER TO WHILE BEING REPRESENTED BY THE UNDERSIGNED ATTORNEY(S).

THIS CONTRACT MAY BE CANCELLED BY WRITTEN NOTIFICATION TO THE ATTORNEY AT ANY TIME WITHIN 3 BUSINESS DAYS OF THE DATE THE CONTRACT WAS SIGNED, AS SHOWN BELOW, AND IF CANCELLED THE CLIENT SHALL NOT BE OBLIGATED TO PAY ANY FEES TO THE ATTORNEY(S) FOR THE WORK PERFORMED DURING THAT TIME. IF THE ATTORNEY(S) HAVE ADVANCED FUNDS TO OTHERS IN REPRESENTATION OF THE CLIENT, THE ATTORNEY(S) ARE ENTITLED TO BE REIMBURSED FOR SUCH AMOUNTS AS THEY HAVE REASONABLY ADVANCED ON BEHALF OF THE CLIENT.

CLIENT SIGNATURE

SIGNATURE: Cydia A P de Souza DATE: 11/08/2023

NAME: Cydia Alves Pereira de Souza

ATTORNEY SIGNATURES

On behalf of ***Nash & Franciskato Law Firm***

SIGNATURE: _____ DATE: _____

NAME: Brian Franciskato

On behalf of ***mctlaw.***

SIGNATURE: _____ DATE: _____

NAME: Ilyas Sayeg

On behalf of ***Cohen & Malad***

SIGNATURE: _____ DATE: _____

NAME: Ned Mulligan

On behalf of **SILVEIRA, FERRAZ & RENAN LOPES SOCIEDADE DE ADVOGADOS**

SIGNATURE: _____ DATE: _____

NAME: Victor Correa

NOTICE REGARDING SOCIAL MEDIA

If you utilize social media sites/accounts/applications, this Notice serves to inform you that any information you post, message, share, etcetera could become discoverable evidence during the course of your case. Even if the sites/accounts/applications are deactivated, or marked as private, the information contained therein is still discoverable.

DO NOT DELETE OR ALTER ANY MATERIALS WHICH COULD BE EVIDENCE OR DEACTIVATE ANY ACCOUNTS WHICH COULD POTENTIALLY CONTAIN EVIDENCE. IF SUCH POTENTIAL EVIDENCE IS DESTROYED OR ALTERED BY YOU, DEFENSE COUNSEL MAY ARGUE THAT YOU WERE HIDING EVIDENCE RELATING TO YOUR CASE AND ASK THE COURT FOR SEVERE SANCTIONS, INCLUDING DISMISSAL OF YOUR CASE.

We would encourage you to be cautious and/or refrain completely from sharing, posting or discussing any information regarding your claims on any social media sites or internet platforms.

Social media sites/accounts/applications include, but are not limited to, Facebook, Snapchat, Instagram, Twitter, KiK, TikTok, Pinterest, Vine, Tumblr, Google+, WhatsApp, LinkedIn, Tinder, YouTube, Reddit, Flickr, Meetup, ClassMates, Ask.fm, Periscope, VK. This extends to matchmaking/dating services, business networking sites, as well as any blogs, vlogs, video diaries, online journaling, etcetera.

I hereby acknowledge that I have received and understand the foregoing Notice Regarding Social Media.

Date: 11/08/2023

Cydia A P de Souza

Cydia Alves Pereira de Souza

Medical Provider Information
Cydia Alves Pereira de Souza

PHYSICIANS

Please supply complete names and addresses.

Name: LUIZ ANTONIO MARTINS VIEIRA
Address: RUA JOAO LIRA, 154
RIO DE JANEIRO BRAZIL
22430-210

Type of Care: SURGERY / SURGEON
Dates of Care: 14/12/2014

Name: LUIZ ANTONIO MARTINS VIEIRA
Address: RUA JOAO LIRA, 154
RIO DE JANEIRO, BRAZIL
22430-210

Type of Care: SURGERY / SURGEON
Dates of Care: 21/12/2022

HOSPITAL/ CLINICS

Name: HOSPITAL COPA D'OR
Address: RUA FIGUEIREDO MAGALHAES, 875
COPACABANA, BRAZIL 22031-011

Type of Care: ADMISSION / SURGERY
Dates of Care: 14/12/2014

Name: CASA DE SAUDE SÃO JOSE
Address: RUA MACEDO SOBRINHO, 21
HUMAITA, BRAZIL
22271-080

Type of Care: ADMISSION / SURGERY
Dates of Care: 21/12/2022

IF ADDITIONAL SPACE IS NEEDED, PLEASE SEND PROVIDER INFORMATION IN AN EMAIL TO acryderman@nashfranciskato.com.